

TENTATIVE RULING

Maria Gonzalez
v.
BestNest Management, LLC, et al.
21CV002228

Plaintiff's Motion for Final Approval and Award of Fees, Costs, and Service Award

Hearing Date: September 4, 2026 (continued from July 31, 2026)

Plaintiff Maria Gonzalez's ("Plaintiff") unopposed motion for final approval of the class action and Private Attorneys General Act of 2004 ("PAGA") settlement between her and Defendants BestNest Management, LLC, and BestNest Staffing, LLC (collectively, "Defendants") is **DENIED WITHOUT PREJUDICE** due to procedural defects in the notice of the continued final-approval hearing and its service.

On July 30, 2026, the Court issued a Tentative Ruling that conditionally granted the motion in part and denied it in part (by reducing the class representative enhancement to \$5,000). Further, the July 31 hearing was continued to September 4 to allow Plaintiff to file supplemental papers by August 25 on the limited evidentiary issues regarding (1) the amount of the attorneys' fees, and (2) submission of the notice of settlement to the California Labor and Workforce Development Agency ("LWDA").

First, nothing in the record indicates that Defendants — who have appeared in this action but are currently unrepresented — received notice of the continued hearing. Even though a business entity cannot represent itself (e.g., *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145-46), Defendants have appeared and are entitled to be served with all notices of motion and supporting papers that have not previously been served on them. [Code Civ. Proc. §§ 1010, 1014, 1015.]

Also, the proofs of service filed on August 25, 2026 are defective. The proofs list only an address rather than identifying the name of the person served, in violation of Code of Civil Procedure section 1013a's requirement that a proof of service by mail state the name and address of the person served as shown on the envelope.

Because of these defects, the Court cannot rule on the merits of the motion. To avoid further confusion, this matter will not be continued. Instead, Plaintiff may file a renewed motion for final approval. Any re-filed motion must incorporate the Court's prior rulings on all issues (e.g., the reduction of the class representative enhancement), except the LWDA notice and the amount of attorneys' fees. With respect to the LWDA notice and attorneys' fees, the moving papers should include all arguments and evidence raised in the original motion, as well as the supplemental filings. Plaintiff must properly serve all notices and moving papers on Defendants.

Plaintiff shall prepare and submit a Proposed Order consistent with this Tentative Ruling.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.